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CASE #	CASE NAME	HEARING NAME
CVPS2301745	CAPITAL ONE N.A. VS SALAYKO	MOTION TO SET ASIDE DEFAULT JUDGMENT

Tentative Ruling: C.C.P. §473.5 authorizes the court to grant relief where there has been proper service of summons but defendant did not get actual notice of the action in time to defend. Relief under C.C.P. §473.5 must be sought within a “reasonable time” and in no event later than two years after entry of default judgment or 180 days after service of written notice that default or default judgment has been entered, whichever comes first. (C.C.P. §473.5(a); *Trackman v. Kenney* (2010) 187 Cal.App.4th 175, 180.) The notice of motion must be accompanied by a declaration showing defendant’s lack of actual notice and that this lack of notice was not caused by his or her avoidance of service or inexcusable neglect. (C.C.P. §473.5(b); *Anastos v. Lee* (2004) 118 Cal.App.4th 1314, 1319.) The defendant must also file with the notice of motion a copy of the answer, motion or other pleading proposed to be filed in the action. (C.C.P. §473.5(b).) The defendant must show that their lack of actual notice was not caused by inexcusable neglect or avoidance of service. (*Tunis v. Barrow* (1986) 184 Cal.App.3d 1069, 1077-1078.)

Here, Defendant failed to comply with C.C.P. §473.5(b) requirement that a copy of the answer, motion or other pleading be submitted with the notice of motion to set aside. Defendant also admits in his motion that he received actual notice of the lawsuit on July 9th, 2025. However, the motion to set aside was not filed until 4.30.26, 9 months and 21 days later. Additionally, the Declaration of Reasonable Diligence submitted by Registered Process Server Bill McElroy, that he contacted an individual on 4.29.23 that they resided at the Saturnino address and that the subject (Salayko) received mail there. Under Evidence Code § 647, there is a rebuttable presumption of service when a return is submitted by a registered process server. Defendant has not submitted sufficient facts to overcome that presumption. Defendant has also failed to show compliance with the time restrictions of §473.5(b), as the entry of default occurred on 9.28.23, more than two years prior to Defendant’s motion and well after the 180 days of service of notice of the default.

Under §473(d), If there has not been valid service of summons, the judgment violates due process of law and is void and can be set aside at any time (*Calvert v. Al Binali* (2018) 29 Cal.App.5th 954, 960-961; *Rochin v. Pat Johnson Mfg. Co.* (1998) 67 Cal.App.4th 1228, 1239.) “A judgment is considered void on its face only when the invalidity is apparent from an inspection of the judgment roll or court record without consideration of extrinsic evidence. When a default judgment has been taken, the judgment roll consists of the summons, with the affidavit or proof of service; the complaint; the request for entry of default ... , and a copy of the judgment.” (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 370-371[internal quotation marks and citation omitted].) A judgment is void as a matter of law when there is a lack of subject matter jurisdiction, a lack of personal jurisdiction, a lack of actual or constructive notice of proceedings (e.g., because papers served on defendant’s attorney who had been suspended by State Bar and thus had no authority to represent defendant), and may also be available when no statement of damages was served (*Heidary v. Yadollahi* (2002) 99 Cal.App.4th 857, 862) or when the default judgment exceeded the amount demanded in the complaint. In review of the default judgment from the court record, the court finds that the judgment is not void on its face.